

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



September 14, 2018

Honorable Wesley R. Mason
Judge of the Superior Court
County of San Diego
P.O. Box 122724
San Diego, CA 92112-2724

Re: Nissen, Rudy Santos
CDC No.: T58362
Case No.: SCS165116
Date of Sentence: 6/25/2002

Dear Honorable Wesley R. Mason:

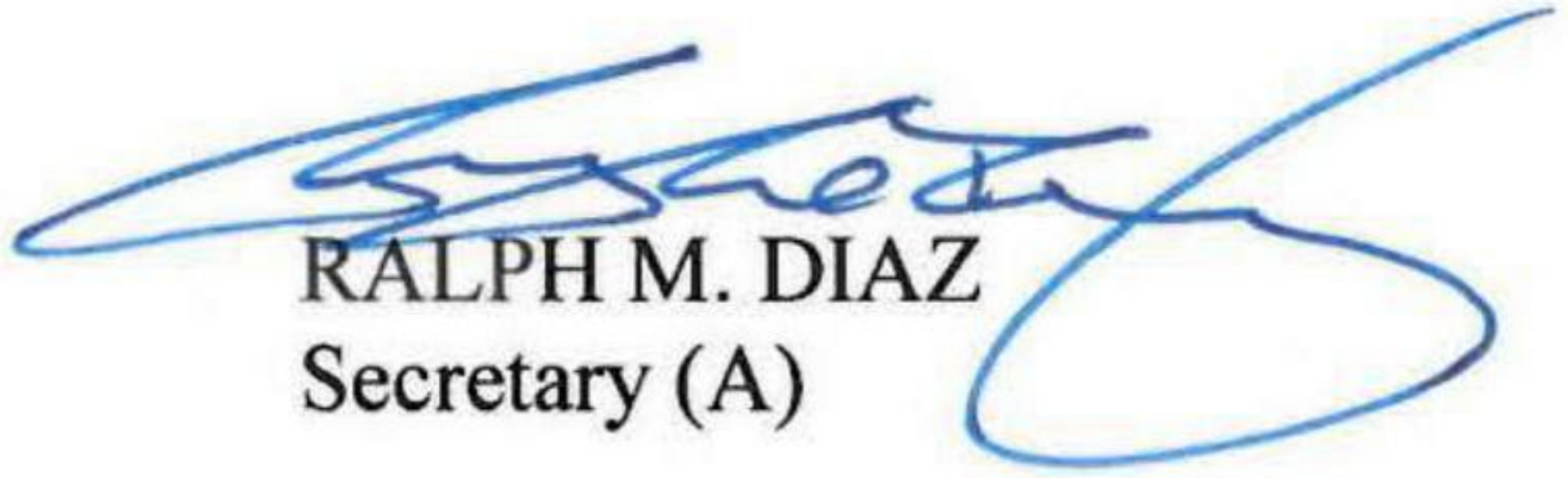
The purpose of this letter is to provide the court with authority to resentence Rudy Santos Nissen pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Nissen was sentenced in 2002, and was convicted of section 245, subdivision (a)(1), ASSLT. W/D.W./FORCE C GBI. The trial court sentenced inmate Nissen on 6/25/2002. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Nissen's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Nissen's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Peter C. Deddeh, San Diego County Presiding Judge
San Diego District Attorney
Public Defender

01C 7-6-02 1187207 158362 003 6A 6A CR-290

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN DIEGO
☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT SOUTH COUNTY

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: RUDY SANTOS NISSEN
AKA: RUDY NISSEN SANTOS
DOB: 01-27-78
CII#: 11408830
BOOKING #: 01187207A
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT

SCS165116 -A
-B
-C
-D

DATE OF HEARING 06-25-02
CLERK N. PERNICANO
COUNSEL FOR PEOPLE S. ROACH

DEPT. NO. 10
REPORTER M. HIRSCHORN

JUDGE W. MASON
PROBATION NO. OR PROBATION OFFICER A775172
COUNSEL FOR DEFENDANT L. PLUMMER

☐ NOT PRESENT
☐ AMENDED ABSTRACT
☒ APPTD.

1. Defendant was convicted of the commission of the following felonies:
☐ Additional counts are listed on attachment (number of pages attached)

CNT.	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (Under 18 months)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
2	PC	245(a)(1)	ASSLT. W/D.W. /FORCE C GBI	2001	05-23-02	X			M							6	0
3	PC	243(d)	BATTERY W/ SER.BOD. INJURY	2001	05-23-02	X			M						X		

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
2	PC12022.7(a)	3	PC186.22(b)(1)	10					13 0
3	PC12022(b)(1)	S	PC186.22(b)(1)	S					0 0

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTION OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
PC667.5(B)	S	PC667(a)(1)	5					5 0

4. ☒ Defendant was sentenced pursuant to PC 667 (b)-(l) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 24 0

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

SCS165116 -A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

- a. RESTITUTION FINE of: **\$2400.** per PC 1202.4(b) forthwith per PC 2085.5.
b. RESTITUTION FINE of: **\$2400.** per PC 1202.45 suspended unless parole is revoked.
c. RESTITUTION of: \$_____ per PC 1202.4(f) to ☒ victim(s)* ☐ Restitution Fund
(*List victim name(s) if known and amount breakdown in item 11, below.)
(1) ☒ Amount to be determined.
(2) ☐ Interest rate of: ____% (not to exceed 10% per PC 1202.4(f)(3)(F)).
d. ☐ LAB FEE of: \$_____ for counts: _____ per H&SC 11372.5(a).
e. ☐ DRUG PROGRAM FEE of \$150 per H&SC 11372.7(a).
f. ☐ FINE of \$_____ per PC 1202.5.

10. TESTING

- a. ☐ AIDS pursuant to ☐ PC 1202.1 ☐ other (specify):
b. ☐ DNA pursuant to ☐ PC 290.2 ☐ other (specify):

11. Other orders (specify):

*Victim per P.O.'s report.

The defendant is ordered to register per PC186.30.

12. Execution of sentence imposed

- a. ☒ at initial sentencing hearing.
b. ☐ at resentencing per decision on appeal.
c. ☐ after revocation of probation.
d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
e. ☐ other (specify):

13. CREDIT FOR TIME SERVED

CASE NUMBER	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
SCS165116 -A	207	180	☐ 4019 ☒ 2933.1
-B			☐ 4019 ☐ 2933.1
-C			☐ 4019 ☐ 2933.1
-D			☐ 4019 ☐ 2933.1
DATE SENTENCE PRONOUNCED: 06-25-02	SERVED TIME IN STATE INSTITUTION: ☐ DMH ☐ CDC ☐ CRC		

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify): _____

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

N. PERNICANO

N. Pernicano

DATE

06-25-02